

25VECV06838 25VECV06838

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-19

Motion: DEFENDANT'S MOTION FOR SANCTIONS

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Case Number: 25VECV06838 Hearing Date: August 19, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

GUILLERMO ORTIZ, an individual; and JULIANA CERVANTES, an individual,

Plaintiffs,

vs.

KIA AMERICA, INC., a California corporation; and DOES 1-10, inclusive,

Defendants.

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CASE NO: 25VECV06838

[TENTATIVE] ORDER RE: DEFENDANT'S MOTION FOR SANCTIONS

Dept. U

8:30 a.m.

August 19, 2026

BACKGROUND

This case is a lemon law action filed by Plaintiffs Guillermo Ortiz ("Ortiz") and Juliana Cervantes against Defendant Kia America, Inc.

On December 2, 2025, Plaintiffs filed their complaint against Defendant, alleging a single cause of action for breach of express warranty in violation of the Song-Beverly Act.

On January 8, 2026, Defendant filed its answer to the complaint.

On March 17, 2026, the Court entered the parties' joint stipulation and protective order.

On April 10, 2026, the Court denied Plaintiffs' motion for sanctions under Code of Civil Procedure section 871.26 (j)(1).

On May 15, 2026, Defendant filed its motion for sanctions under Code of Civil Procedure section 871.26 (j)(2).

On August 6, 2026, Plaintiffs filed their opposition brief.

On August 12, 2026, Defendant filed its reply brief.

RULING

The motion is denied.

LEGAL STANDARD

“Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: [...] (2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff’s attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).” Code Civ. Proc., § 871.26 (j).

DISCUSSION

Defendant moves for sanctions under Code of Civil Procedure section 871.26 (j)(2) because Ortiz failed to present for deposition within the 120-day statutorily prescribed timeframe.

Ortiz’s deposition was set for May 8, 2026. Due to a “last-minute scheduling conflict,” Ortiz canceled his deposition at 8:23 A.M. on that date. While Ortiz provided alternative dates for his deposition to take place, none of them were within the 120-day statutorily prescribed timeframe, and none of them were before the parties’ scheduled mediation. (Pratty decl., ¶¶ 11-15.)

Plaintiffs’ counsel explains that on May 8, 2026, he “had an unexpected conflict and was unable to proceed with the deposition as planned.” On May 14, 2026, Ortiz offered at least two (2) alternative dates for his deposition to proceed. Though not before the 120-day deadline, Ortiz was ultimately deposed on July 15, 2026. (Cohen decl., ¶¶ 10-14.)

The relevant statute states sanctions are mandatory “[u]nless the party failing to comply with this section shows good cause.” Code Civ. Proc., § 871.26 (j). Here, Plaintiffs’ counsel offers sworn testimony that an unexpected scheduling conflict caused him to be unavailable on the original deposition date. The Court takes counsel at his word. Counsel’s attestation as to a scheduling conflict is sufficient to satisfy the statute’s “good cause” requirement for excusing the deposition’s untimeliness and for waiving sanctions.

This is the second time the Court has denied a motion for sanctions under Code of Civil Procedure section 871.26 in this case. The Court now takes a dim view of Defendant’s motion, which appears to adopt a tit-for-tat strategy. If every scheduling conflict resulting in a rescheduled deposition warranted court intervention, trial courts would be inundated with motions for sanctions. The purpose of the legislature enacting Code of Civil Procedure section 871.26 was to streamline lemon law litigation and reduce court backlogs. The Court admonishes both sides for failing to work together and instead attempting to score points on motions for attorneys’ fees by pointing out where the other side technically failed to satisfy its obligations under the statute, especially where the defect was subsequently cured.

The motion is denied.

CONCLUSION

Defendant Kia America, Inc.’s motion for sanctions against Plaintiffs Guillermo Ortiz and Juliana Cervantes is DENIED. See Code Civ. Proc., § 871.26 (j)(2).

cc

Plaintiffs Guillermo Ortiz and Juliana Cervantes are ORDERED to give notice.

DATED: August 19, 2026

Lee S. Arian

Judge of the Superior Court